

File No.: EXP202213549

RESOLUTION No.: R/00509/2023

Considering the complaint filed on November 11, 2022, with this Agency by Ms. A.A.A. (hereinafter, the complainant) against HORNO AGUERO S.L. (hereinafter, the respondent) for not having properly addressed her right to erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: The complainant states that the respondent has published images on its commercial Instagram account (**ACCOUNT.1) in which the complainant appears, without her consent. She indicates that she is a discreet person and does not want her image to be used for the benefit of the respondent. She claims that these publications have caused her harm.

Finally, she adds that she has been dismissed and that she has attempted to have the images removed, unsuccessfully, as she did not receive a response to her messages.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to provide a response to the complainant and this Agency within one month, without any response being received.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on February 11, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period for resolving this procedure, which is understood to have commenced with the aforementioned admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days it could present any arguments it deemed appropriate. This entity stated, in summary, that they have reviewed their records and emails and have not received any request for the exercise of the right to erasure from the complainant.

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Furthermore, "(...) We confirm that we currently do not have personal data of the complainant published on our social media. Nevertheless, we would like to clarify that an individual image of the complainant was not published; rather, what was published on our social profile was a group photo of all the colleagues at work, which as of today is no longer published on any social profile that our company has.)"

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, she could submit any arguments she deemed appropriate, without any response being recorded as having been received by this Agency.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data

Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of the...

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Regulation (EU) 2016/679 will commence with an admission agreement, which will be adopted in accordance with the provisions set forth in the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that need to be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to express their reasons in case they do not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request

the affected party to specify the "data or processing activities to which the request refers." The right will be understood as granted if the controller provides remote access to the data.

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considering the request has been attended to (although the interested party may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as

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the right indicated in section 1 could make it impossible or severely hinder the achievement of the objectives of said processing, or

- e) for the formulation, exercise, or defense of claims."

FIFTH: In the case analyzed here, from the examination of the documentation provided by the parties, it is observed that the claiming party attempted to request the removal of their image published in several photographs by the claimed party, without receiving a response. During the proceedings, the claimed party has stated that it has not received any request from the claiming party. However, it has

removed the images in which the claiming party appears as part of the group of workers. Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, given that no documentary evidence has been provided that allows for the consideration that the claimed party has expressly responded to the claiming party informing them of the removal carried out, and taking into account that it cannot be accepted that the response that should be directed to the applicant can be expressed on the occasion of a mere administrative procedure, such as the submission of allegations in the context of the rights procedure, initiated precisely for not properly addressing the request in question, it is appropriate to uphold the claim presented.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. and to instruct HORNO AGUERO S.L. with NIF B97522387, to, within ten working days following the notification of this resolution, send to the claiming party a certification stating that it has addressed the requested right of deletion or that it is denied with justification indicating the reasons why the request cannot be addressed, in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to HORNO AGUERO S.L. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1195-040423

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